

Dispute Chamber

Decision on the merits 62/2025 of March 26, 2025

File number: DOS-2020-01328

Subject: Complaint regarding the publication of personal data of jubilee celebrants in a brochure in connection with an anniversary organized by the city

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, sitting alone;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and on the free movement of such data and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "WOG"¹;

Considering the internal rules of procedure, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant"

The respondent:

City Y, hereinafter "the respondent"

1 The GBA reminds that the law of December 25, 2023, amending the law of December 3, 2017, establishing the Data Protection Authority (WOG), and the new internal rules of procedure of the GBA, came into effect on June 1, 2024. The new provisions apply to complaints, mediation files, requests, inspections, and procedures for the Dispute Chamber that commence from this date. The new WOG is available via this link: <https://www.ejustice.just.fgov.be/cgi/loi/changeIg.pl?language=nl&la;=N&cn;=2017120311&table; name=wet>, and the internal rules of procedure via this link: . Files initiated before June 1, 2024, of which this file is a part, are subject to the provisions of the WOG and the internal rules of procedure as they existed before this date.

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I. Facts and Procedure

1.

On March 13, 2020, the complainant filed a complaint with the Data Protection Authority against the respondent.

2.

The subject of the complaint concerns the alleged unlawful processing of the name and first name of the complainant by the respondent. The respondent is City Y. It sent a letter to all its residents who turn fifty in 2020 inviting them to a celebration that is traditionally organized by it. The invitation by letter was accompanied by a brochure in which the name and first name of all jubilee celebrants were published. In total, this involved the publication of 620 names, including that of the complainant. The complainant argues that all addressed jubilee celebrants can thereby become aware of her name, first name, age, and the city where she resides, and that this constitutes an infringement of her privacy.

3.

On March 16, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 WOG and was forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

4.

On April 23, 2020, the Dispute Chamber decided based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment.

5.

On April 23, 2020, the parties involved were notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They were also informed based on Article 99

WOG of the deadlines to submit their defenses.

6.

The deadline for receipt of the respondent's statement of defense was set for May 25, 2020, the deadline for the complainant's reply was set for June 8, 2020, and the deadline for the respondent's rejoinder was set for June 22, 2020. Since the complainant could only access the respondent's statement of defense on June 24, 2020, the deadline for the complainant's reply was extended to July 23, 2020, and the deadline for the respondent's rejoinder to August 13, 2020.

7.

On May 20, 2020, the Dispute Chamber received the respondent's statement of defense. In it, a chronology of the events that occurred prior to the filing of the complaint with the Data Protection Authority is first outlined. It argues that the city council itself received two complaints regarding the publication of the names in the brochure. In response to this, the data protection officer of the respondent decided to report the incident on March 9, 2020, to the Flemish Supervisory Commission as a data breach.² Furthermore, the respondent explains that the processing of the names and addresses of the jubilee celebrants was done with the aim

2 Annex 1 statement of defense of the respondent.

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regarding the sending of invitations falls within a specific target group policy of the city administration, which was decided based on its own autonomy. For the sending of the invitations, the respondent consulted the population registers, for which it was authorized by the College of Mayor and Aldermen of the city on January 21, 2020. The respondent therefore expressly invokes Article 6.1 e) GDPR to justify that processing. Finally, the respondent admits that the publication of the names of the jubilarians in the brochure, and thereby ipso facto also their age, occurred without a valid legal basis. It refers to that processing as unlawful, and therefore a breach of the GDPR.

8.

On July 7, 2020, the Disputes Chamber receives the reply conclusion from the complainant. The complainant illustrates that by combining the brochure with the surname of the second person who had lodged a complaint with the respondent regarding the publication, as evidenced by the documents, they were easily able to ascertain the exact residence and telephone number of that person.

9.

The Disputes Chamber receives no further conclusion from the respondent.

II. Reasoning

II.1. Regarding the lawfulness of the processing

10.

The Disputes Chamber recalls that pursuant to Article 5.1 a) GDPR, personal data must be processed lawfully, fairly, and transparently. More specifically, the Disputes Chamber points to the specification of the lawfulness principle as included in Article 6.1 GDPR, which stipulates that any processing of personal data must be based on a legal basis. This means that a data controller may not start or continue processing without relying on one of the conditions listed in Article 6.1 GDPR. The Disputes Chamber emphasizes that each individual processing operation requires a separate legal basis.

II.1.1. Consultation of population registers

11.

The Disputes Chamber notes that the respondent expressly invokes Article 6.1 e) GDPR to consult the population registers and verify the names, ages, and addresses of its residents with the aim of inviting jubilarians to a celebration organized by it.

12.

The Disputes Chamber recalls that a data controller relying on Article 6.1 e) GDPR must be able to demonstrate that the processing is necessary for the

3 Annex 5 response conclusion of the respondent.

4 Annex 2 response conclusion of the respondent.

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fulfillment of a task of general interest or a task in the context of the exercise

of public authority assigned to it. In this regard, the Dispute Chamber notes that the task of general interest, or public authority, must be assigned to the data controller by a norm.⁵

13. To this end, the respondent refers to Article 5 of the Royal Decree concerning the obtaining of information from the population registers and from the aliens register of July 16, 1992⁶, which states that consultation of the population register by municipal services and services dependent on the O.C.M.W is permitted for 'internal purposes'. The Dispute Chamber is of the opinion that this article can indeed serve as a legal basis under national law as referred to in Article 6.3. GDPR, but notes that no conclusive definition has been provided for the content of the term 'internal purposes'.

14.

The Commission for the Protection of Privacy (CBPL) has previously explained that consultation of the population registers must always be covered by a decision of the municipal council, such as a college of mayors and aldermen.⁷ The authorization to consult the population register must always be based on 'internal purposes', which means that it must pertain to purposes that fall within the municipality's authority by virtue of its mandate as a public authority. The Ministerial Circular of July 1, 2011 regarding the consultation of population registers for internal purposes⁸ adds that this can involve both assigned powers and initiatives that the municipality undertakes based on its autonomy. The respondent argues that the consultation of the population register in this case was framed within the specific target group policy of the city council, which was decided based on its own autonomy.

15.

The Dispute Chamber notes that the College of Mayor and Aldermen of the city on January 21, 2020 indeed authorized the city council to consult the population register to invite the jubilee residents in this case.⁹ The Dispute Chamber concludes that the data consulted by the respondent was used solely for inviting 50-year-old residents to a reception by the city council, as established in the college decision. Consequently, the Dispute Chamber is of the opinion that the respondent could legitimately invoke Article 6.1. e) GDPR. It considers the consultation of

5 Art. 6.3. GDPR

6 Royal Decree of July 16, 1992 concerning the obtaining of information from the population registers and from the

aliens register, B.S. August 15, 1992, p. 18041

7 CBPL, Recommendation No. 06/2012 regarding the obtaining of information from the population registers in application of

the royal decree of July 16, 1992 concerning the obtaining of information from the population registers and from the

aliens register (CO-AR-2011-009), May 2, 2012

8 Ministerial Circular BB 2011/2 of July 1, 2011 from the Flemish Minister of Administrative Affairs regarding the

consultation of the population registers for internal purposes, B.S. July 27, 2011

9 See Appendix 5, college decision of January 21, 2020, Art. 1: "The college of mayor and aldermen permits the following

target group-specific consultations of the population register for the legislative term 2020-2025: [...] 50-year-olds to

send invitations for a reception by the administration; [...]"

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the population register necessary for the fulfillment of the internal purpose of the respondent, and believes that the internal purposes listed in the aforementioned college decision can be seen as serving the realization of the local public interest, the well-being of the citizens, and the maximum involvement of the residents in the city policy.

II.1.2. Publication of Names in the Invitation Brochure

16.

From the documents submitted by the complainant, it appears that all jubilee recipients were published by name in a brochure that was added by the city administration to the invitation. In total, this concerns the publication of 620 names, including that of the complainant. The Disputes Chamber notes that the respondent has not only disclosed the names of those involved but ipso facto also their age (50 years) and place of residence (City Y).

17.

The Disputes Chamber reiterates that according to the legality principle from Article 6.1. GDPR, any processing of personal data must be based on a legal ground.

18.

In this case, the Disputes Chamber notes that the publication of the name and surname of those involved constitutes a separate processing, for which a separate legal ground is required. The respondent explicitly admits that the publication of the names in the brochure occurred without a valid legal ground. As a result, the Disputes Chamber concludes that this processing is unlawful and establishes that there has been a violation of Article 6.1. GDPR.

III. Measures

19.

The Disputes Chamber points out that a considerable amount of time has passed between the submission of the last conclusion in this file and the issuance of the present decision. The Disputes Chamber wishes to expressly apologize to the involved parties for this.

20. The Disputes Chamber takes this passage of time into account when determining the appropriate measure in this case – without the passage of time itself being a reason not to impose a sanction.

21.

The Disputes Chamber also considers that the respondent cooperated well in the procedure and admitted their fault.

22.

Given that the violation is established and not disputed, the Disputes Chamber imposes a reprimand in the sense of Article 100 § 1, 5° WOG, regarding the publication of the names of the involved 50-year-olds in the contested brochure.